

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Temporary Judge Catherine Evans

Date: 09/02/2026

Court Room Rules and Notices

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#	Case Name	Tentative
1	Tanaka – Trust; 30-2025-01478615	Motion to Be Relieved as Counsel of Record <u>No tentative ruling.</u>
2	Rivas – Probate; 30-2023-01348724	Motion to Appoint Receiver; Suspend Personal Representative The hearing on Sarai Mejia Villa’s Motion for Appointment of Receiver, etc. (ROA 601) is CONTINUED to 10-14-26 at 9:00 a.m. in Department CM08 to allow the opposing party Esther Castaneda to file supplemental briefing. Villa submitted new evidence in support of her reply brief. “[T]he inclusion of additional evidentiary matter with the reply should only be allowed in the exceptional case . . .’ and if permitted, the other party should be given the opportunity to respond.” (<i>Jay v. Maffey</i> (2013) 218 Cal.App.4th 1522, 1537–1538.) Considering the history of this case and to preserve the resources of both the parties and the court by determining this issue on this motion, the court will continue the hearing and allow Castaneda an opportunity to provide supplemental briefing and evidence in response to the new evidence submitted on reply. The hearing on this motion is CONTINUED to 10-14-26 at 9:00 a.m. in Department CM08. Castaneda may, if she wishes, provide supplemental briefing and evidence responsive to

		the new evidence offered on reply no later than 10-1-26. Villa is not authorized to submit any response. Villa to give notice.
3	Franke – Trust; 30-2024-01435677	Motion to Correct Order
4	Quigley – Trust; 30-2025-01451444	CONTINUED TO 10/21/2026 AT 09:00 AM
5	Lakey – Trust; 30-2025-0154307	Motion to Dismiss Lyndell Lakey’s Motion to Dismiss, or Alternatively to Stay, Proceeding for Inconvenient Forum (ROA 18) is DENIED. The accompanying request for judicial notice (ROA 45) is GRANTED as to Exhibits 1, 2, 5, 6, & 8 and DENIED as to Exhibits 3, 4, & 7. The court takes judicial notice of the existence and legal effect of the judicially noticed documents but does not take judicial notice of the facts asserted within them. (<i>Herrera v. Deutsche Bank National Trust Co.</i> (2011) 196 Cal.App.4th 1366, 1375 [“Taking judicial notice of a document is not the same as accepting the truth of its contents or accepting a particular interpretation of its meaning”].) This motion arises out of two separate proceedings filed in two states. This proceeding (the California Proceeding) arises out of The Carol A. Lakey Revocable Trust (2013 Trust). Petitioner Lynne L. Bobo (Lynne) initiated the California Proceeding in August 2025 by filing a petition (ROA 2) seeking three determinations: (1) that the 2013 Trust is valid; (2) that a particular special warranty deed is valid; and (3) that Lyndell Lakey, Lynne’s brother and the moving party on the instant motion, violated the 2013 Trust’s no contest provision by filing a proceeding in Circuit Court of the State of Missouri, County of Douglas (the Missouri Proceeding) in June 2025. Lyndell’s petition in the Missouri Proceeding arises out of revocable trust agreement executed by Harold Lakey and Carol Lakey on November 14, 2008 (2008 Trust). He